

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Nasir Philips and Brian Mejia,

: Plaintiffs

: -against-

: City of New York, New York City Police Department,
: Police Officer Michael Gonzalez, Shield 24102 of the 47
: Precinct and New York City Police Officers John Doe,: Defendants
-----X: Index Number:
: Date Purchased:
: Date Filed:

: SUMMONS

: Plaintiff Philips's residence
: is:
: 700 East 156 Street
: Bronx, NY 10455

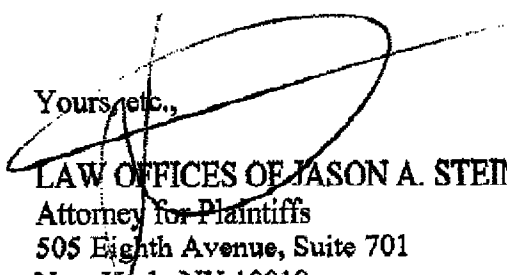
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: November 26, 2019
New York, NY

Yours, etc.,


LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Michael Gonzalez, Shield 24102 of the 47 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Nasir Philips and Brian Mejia,

Plaintiffs,

-against-

City of New York, New York City Police Department,
Police Officer Michael Gonzalez, Shield 24102 of the 47
Precinct and New York City Police Officers John Doe,

Defendants.
-----X

VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Nasir Philips, (hereinafter referred to as "PHILIPS") resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Brian Mejia, (hereinafter referred to as "MEJIA") resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned, Police Officer Michael Gonzalez, Shield 24102, of the 47 Precinct (hereinafter referred to as "GONZALEZ") was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the police officers involved in the arrest of Plaintiffs (hereinafter referred to as "DOES") were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
7. On or before about May 15, 2019 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claims against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
8. On or about October 16, 2019 a hearing required by Municipal Law 50-H was conducted as to both Plaintiffs. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
9. That on or about March 21, 2019 at approximately 1:00AM in the vicinity of 2107 New England Thruway, Plaintiffs were visiting the home of a friend when GONZALEZ and DOES entered said home without a warrant wherein they handcuffed and arrested Plaintiffs.
10. That at no time had PHILIPS or MEJIA engaged in any unlawful or criminal activity.
11. That at no time had PHILIPS or MEJIA possess or exercise control over a weapon.
12. That at no time did PHILIPS or MEJIA possess or exercise control over a controlled substance.
13. That after Plaintiffs were arrested they were both taken to the 47 precinct.

14. That when Plaintiffs arrived at the 47 precinct they were each placed into a cell with other males for several hours.
15. That after being held in cells for several hours in the 47 precinct, each of the Plaintiffs were subjected to a strip search and that nothing of an unlawful or illegal nature was recovered.
16. That after being held in cells for several hours in the 47 precinct, Plaintiffs were removed to Bronx County Central Booking located at 215 East 161 Street, New York, New York.
17. That while at Bronx Central Booking, Plaintiffs were each held in a cell with other males for several hours.
18. That while at Bronx Central Booking, Plaintiffs were subjected to harassment from the other male prisoners.
19. That on about March 22, 2019 both PHILIPS and MEJIA were released without seeing a lawyer or a judge after the Office of the Bronx County District Declined to prosecute the arrest made by GONZALEZ and DOES.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

20. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 19, as if more fully stated herein at length.
21. That Defendants acted with actual malice toward PHILIPS and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
22. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

23. That as a result of the actions by Defendants was traumatized and fears for his physical safety when she sees and encounters members of the New York City Police Department from that day and onward.

24. That as a result of the Defendants' actions, PHILIPS has been unable to sleep.

25. That as a result of the Defendants' actions, PHILIPS missed several days from work.

26. That as a result of the Defendants' actions PHILIPS sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

27. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 26, as if more fully stated herein at length.

28. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of PHILIPS as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

29. Defendants having no lawful authority to arrest PHILIPS did, nevertheless, unlawfully arrest PHILIPS with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff PHILIPS is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. Defendants conspired to violate PHILIPS's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff PHILIPS is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. Plaintiff PHILIPS was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused PHILIPS to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff PHILIPS by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff PHILIPS. PHILIPS is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. At all times pertinent hereto, GONZALEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

36. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that GONZALEZ and DOES committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. The City of New York and New York City Police Department's failure to provide adequate training and supervision to GONZALEZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff PHILIPS. Plaintiff PHILIPS is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

39. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff PHILIPS.

41. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff PHILIPS.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

42. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41 as if more fully stated herein at length.

43. That Defendants acted with actual malice toward MEJIA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of MEJIA.

44. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

45. That as a result of the actions by Defendants, MEJIA was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

46. That as a result of the Defendants' actions, MEJIA has been unable to sleep.

47. That as a result of the Defendants' actions, MEJIA was forced to miss several days from work.

48. That as a result of the Defendants' actions MEJIA sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

49. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff MEJIA as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

51. Defendants, having no lawful authority to arrest MEJIA, did, nevertheless, unlawfully arrest MEJIA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff MEJIA is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

52. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. Defendants conspired to violate MEJIA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff MEJIA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

54. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 53, as if more fully stated herein at length.

55. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff MEJIA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of MEJIA by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of MEJIA. Plaintiff MEJIA is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

56. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 55, as if more fully stated herein at length.

57. At all times pertinent hereto GONZALEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

58. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that GONZALEZ and DOES committed within the scope of his employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

59. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 58, as if more fully stated herein at length.

60. The City of New York and New York City Police Department's failure to provide adequate training and supervision to GONZALEZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff MEJIA. Plaintiff MEJIA is thus entitled to compensatory exemplary damages.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

61. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 60, as if more fully stated herein at length.

62. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff MEJIA.

63. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff MEJIA.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

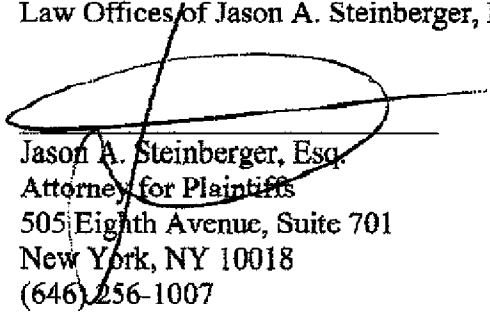
On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

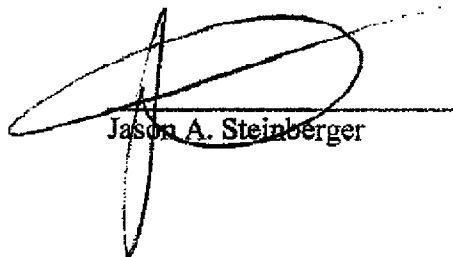


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue, Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: November 26, 2019



Jason A. Steinberger

Index Number:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

NASIR PHILIPS AND BRIAN MEJIA

Plaintiff,

~~-against-~~CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER MICHAEL GONZALEZ, SHIELD 24102 OF THE S& PRECINCT AND NEW
YORK CITY POLICE OFFICERS JOHN DOE,

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC
505 Eighth Avenue
Suite 701
New York, NY 10018

To:

Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

☐

that the within is a (certified) true copy of

☐

entered in the office of the clerk of the within named Court on

NOTICE
OF ENTRY☐that an Order of which the within is a true copy will be presented for settlement to the Hon.
once of the Judges of the within named Court,

NOTICE OF

SETTLEMENT at
on

200 , at m.

Dated:

JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018

To:

Attorney(s) for